

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR ENGROSSED

HOUSE BILL NO. 2059

By: Stinson, Deck, and Menz of
the House

and

Rosino of the Senate

COMMITTEE SUBSTITUTE

An Act relating to health care; defining term; directing the Oklahoma Health Care Authority to enter into contracts to provide medication to certain inmates; requiring certain reimbursement subject to specified conditions; mandating certain medication coverage; directing promulgation of rules; amending 19 O.S. 2021, Section 746.1, which relates to the Medical Expense Liability Revolving Fund; transferring fund to the Authority; modifying name and purpose of fund; amending 20 O.S. 2021, Section 1313.7, which relates to medical expense liability fee; changing name of fee; modifying criteria for use of monies; reducing certain expense limit; updating statutory language; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 7500 of Title 63, unless there is created a duplication in numbering, reads as follows:

1 A. As used in this section, "medication" means medically
2 necessary prescription and over-the-counter drugs.

3 B. The Oklahoma Health Care Authority may contract with
4 counties and municipalities to provide medications to detainees and
5 inmates in the custody of the county or municipality, and not in the
6 custody of the Department of Corrections.

7 C. The Oklahoma Health Care Authority, subject to the
8 availability of funds and in accordance with the procedures
9 prescribed by Section 1313.7 of Title 20 of the Oklahoma Statutes,
10 shall directly reimburse counties and municipalities for medications
11 provided to detainees and inmates under subsection B of this
12 section.

13 D. Notwithstanding any other provision of law, a county or
14 municipality that holds a contract under subsection B of this
15 section shall maintain uninterrupted medication coverage for any
16 detainee or inmate in its custody and receiving medication pursuant
17 to the contract, regardless of the availability of funds, through
18 the County and Municipal Jail Medication Revolving Fund created in
19 Section 746.1 of Title 19 of the Oklahoma Statutes or other sources.
20 No interruption in medication coverage shall occur solely on the
21 basis of lack of availability of funds.

22 E. The Oklahoma Health Care Authority shall promulgate rules to
23 implement this section.

1 SECTION 2. AMENDATORY 19 O.S. 2021, Section 746.1, is
2 amended to read as follows:

3 Section 746.1. There is hereby created in the State Treasury a
4 revolving fund for the ~~State and Education Employees Group Insurance~~
5 ~~Board~~ Oklahoma Health Care Authority to be designated the ~~"Medical~~
6 ~~Expense Liability Revolving Fund"~~ "County and Municipal Jail
7 Medication Revolving Fund". The fund shall be a continuing fund,
8 not subject to fiscal year limitations, and shall consist of all
9 monies received from fees assessed pursuant to Section 1313.7 of
10 Title 20 of the Oklahoma Statutes. All monies accruing to the
11 credit of the fund ~~shall be~~ are hereby appropriated and may be
12 budgeted and expended by the ~~State and Education Employees Group~~
13 ~~Insurance Board for qualified medical expenses for inmates or~~
14 ~~persons in the custody of a county or city jail pursuant to the~~
15 ~~criteria set forth in Section 1313.7 of Title 20 of the Oklahoma~~
16 ~~Statutes. A portion of the Medical Expense Liability Revolving Fund~~
17 ~~shall be used for the costs the Board incurred in administering such~~
18 ~~monies~~ Authority to reimburse counties and municipalities for the
19 provision of medication to detainees and inmates under Section 1 of
20 this act. Expenditures from the fund shall be made upon warrants
21 issued by the State Treasurer against claims filed as prescribed by
22 law with the Director of the Office of Management and Enterprise
23 Services for approval and payment.

1 SECTION 3. AMENDATORY 20 O.S. 2021, Section 1313.7, is
2 amended to read as follows:

3 Section 1313.7. A. In addition to the fees imposed by Sections
4 1313.2 and 1313.3 of this title, any person convicted of any
5 offense, excluding municipal ordinances, traffic offenses and
6 parking and standing violations, but including violations of Section
7 11-902 of Title 47 of the Oklahoma Statutes, punishable by a fine of
8 Ten Dollars (\$10.00) or more or by incarceration or any person
9 forfeiting bond when charged with such offense, shall be ordered by
10 the court to pay a ~~medical expense liability~~ county and municipal
11 jail medication fee in the amount of Ten Dollars (\$10.00) for each
12 offense to the ~~Medical Expense Liability~~ County and Municipal Jail
13 Medication Revolving Fund ~~provided for~~ created in Section 746.1 of
14 Title 19 of the Oklahoma Statutes. The fee shall be in addition to
15 and not in substitution for any and all fines and penalties
16 otherwise provided for by law for such offense.

17 B. The county court clerk shall cause to be deposited the
18 amount of Ten Dollars (\$10.00) as collected, for every conviction as
19 described in this subsection. The county court clerk shall remit
20 the monies in the fund on a monthly basis to the ~~Medical Expense~~
21 ~~Liability~~ County and Municipal Jail Medication Revolving Fund.

22 The monies from the ~~Medical Expense Liability~~ County and
23 Municipal Jail Medication Revolving Fund shall be used when all of
24 the following criteria are met:

1 1. ~~The county has not filed a claim against the fund in the~~
2 ~~previous twelve (12) months;~~

3 ~~2.~~ A county or municipal jail in this state is determined to be
4 liable for the ~~medical~~ medication expense or expenses of a ~~state~~
5 detainee or inmate ~~or person~~ in custody on state charges as provided
6 by law. ~~The minimum expense amount that shall qualify for~~
7 ~~consideration is Six Thousand Dollars (\$6,000.00) per ailment or~~
8 ~~injury;~~

9 ~~3.~~ 2. The county clerk of the county or the appropriate
10 official of the municipality makes a written claim to the ~~State and~~
11 ~~Education Employees Group Insurance Board~~ Oklahoma Health Care
12 Authority regarding a county ~~medical~~ or municipal medication
13 expense. In addition to the written claim, all of the medical
14 records and bills shall be submitted that relate to the ~~medical~~
15 medication expense under consideration; and

16 ~~4.~~ 3. It is determined that the ~~state inmate or person~~ detainee
17 or inmate in custody on state charges lacks the ability and
18 resources to cover the ~~medical expense or~~ medication expenses.

19 C. The ~~Medical Expense Liability~~ County and Municipal Jail
20 Medication Revolving Fund shall not pay any expenses in excess of
21 ~~One Hundred Thousand Dollars (\$100,000.00)~~ Ten Thousand Dollars
22 (\$10,000.00) per ~~state inmate or person~~ detainee or inmate in
23 custody on state charges. The ~~State and Education Employees Group~~
24 ~~Insurance Board~~ Oklahoma Health Care Authority shall pay valid

1 requests for reimbursements quarterly based upon a pro rata share of
2 available funds being distributed between all valid claims received
3 within the preceding quarter. In the event there are insufficient
4 funds available to pay any outstanding requests, the ~~Board~~ Oklahoma
5 Health Care Authority shall pay such requests only after sufficient
6 funds have accumulated. Nothing in this subsection shall be
7 construed to require payment in full of any or all valid claims or
8 the holding of any or all valid claims until sufficient funds have
9 accumulated to pay the claims in full.

10 D. If the ~~state inmate or person~~ detainee or inmate in custody
11 on state charges receives any type of compensation or award from a
12 collateral source as a result of the ailment or injury which is paid
13 by the ~~Medical Expense Liability~~ County and Municipal Jail
14 Medication Revolving Fund, the state shall be subrogated to the
15 rights of a claimant to receive or recover from a collateral source
16 to the extent that ~~medical~~ medication expenses were awarded.

17 SECTION 4. This act shall become effective November 1, 2026.
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